Collective Bargaining Agreement: Agricultural Industry (All Sub-sector Allowances)

IT is hereby notified that the Minister of Public Service, Labour and Social Welfare has, in terms of section 80(1) of the Labour Act [*Chapter 28:01*], approved the publication of the Collective Bargaining Agreement set out in the Schedule which was registered in terms of section 79 of the Act.

SCHEDULE

NATIONAL EMPLOYMENT COUNCIL FOR THE AGRICULTURAL INDUSTRY

COLLECTIVE BARGAINING AGREEMENT: AGRICULTURAL INDUSTRY (ALL SUB-SECTOR ALLOWANCES)

Made and entered in accordance with the Labour Act [*Chapter 28:01*], as amended from time to time, between the Zimbabwe Agricultural Employers Organisation (ZAEO), Zimbabwe Commercial Farmers Union (ZCFU), Zimbabwe Farmers Union (ZFU), Zimbabwe Tobacco Association (ZTA), Zimbabwe Tea Growers Association (ZTGA), Timber Producers Association (TPA), Zimbabwe Sugarcane Employers Organisation (ZSEO), Commercial Farmers Union (CFU), Zimbabwe Kapenta Producers Association (ZKPA) and Agro and Horticulture employer representatives (herein referred to as "the employer party" or "the employers' organisations"), of the one part, and the Kapenta Workers Union of Zimbabwe (KWUZ), General Agriculture and Plantation Workers' Union of Zimbabwe (GAPWUZ) and Horticulture, General Agriculture and Plantation Workers' Union of Zimbabwe (HGAPWUZ) (herein referred to as "the employee party" or "the trade unions"), of the other part, being parties to the National Employment Council for the Agricultural Industry in Zimbabwe to further amend the Collective Bargaining Agreement published in Statutory Instrument 116 of 2014.

This further agreement shall be deemed to have come into operation on the 1st of May, 2021.

The employer party and the employee party agreed on all sub-sector allowances as follows:

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ALL SUB SECTOR ALLOWANCES IN THE AGRICULTURAL INDUSTRY	OLD MONTHLY ALLOWANCES	NEW MONTHLY ALLOWANCES EFFECTIVE 1ST MAY, 2021
TYPE OF ALLOWANCES	ZWL$	ZWL$
Transport	Actual cost to be paid by the employer	Actual cost to be paid by the employer
Accommodation	400	1,300
Fuel	120	215
Light	175	320
Dog Handling (for employees who have been required to handle dogs as part of their duty)	5% of employee's basic monthly wage	5% of employee's basic monthly wage
Firearm (for employees who have been required to handle firearms as part of their duty)	5% of employee's basic monthly wage	5% of employee's basic monthly wage
Travel and Subsistence	Actual cost to be paid by the employer	Actual cost to be paid by the employer

The employer and employee parties further agreed that where an employer and employee in the agricultural industry agree that the employee shall construct, at the premises of the employer, accommodation which the employee will occupy during the tenure of his/her employment, the employer shall pay the employee concerned a once-off accommodation construction allowance which is no less than the employees' basic wages for two weeks of work at the time of payment.

Exemptions/Reviews

An establishment or employees can apply to the National Employment Council within 14 days for an exemption or partial exemption/review from paying wages as set up in the above schedule, stating the reasons why that application should be considered.

The agreement is binding on all organisations within the agricultural industry.

Signed at Harare on the 13th day of May, 2021.

F. ZONDO,
Chairperson – Employees' Representative.

T. NYIRENDA,
Vice Chairperson – Employers' Representative.

D. MADYAUSIKU,
Chief Executive Officer – NEC Agriculture.